

8. 9:00 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
***HEARING ON MOTION FOR DISCOVERY A PROTECTIVE ORDER, TO STAY ALL WRITTEN DISCOVERY, AND FOR THE ISSUANCE OF A CASE MANAGEMENT ORDER. FILED BY SEQUOIA EQUITIES, INC.**
FILED BY:
TENTATIVE RULING:

Defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. (“Defendants”) filed their Motion for a Protective Order and Stay All Written Discovery and for the Issuance of a Case Management Order (the “Motion for a Protective Order and Other Relief”) on June 26, 2025. The Motion for a Protective Order and Other Relief was initially set for hearing on October 6, 2026.

A Motion to Consolidate Related Cases has also been filed as to this and a related case (the “Motion to Consolidate”). The Motion to Consolidate has been continued several times and is now pending in Department 39 and set to be heard on February 5, 2026.

The Court has trailed the Motion for a Protective Order and Other Relief several times to new court dates, pending the adjudication of the Motion to Consolidate.

Disposition

The Court finds and rules as follows:

1. The Motion for a Protective Order and Other Relief is continued for hearing to **March 16, 2026, 9:00 a.m., Department 34.**
2. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C25-01210
CASE NAME: SHARON DE EDWARDS MD VS. NANDI ROBISON
HEARING IN RE: MOTION TO DISMISS
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Nandi Robison’s Motion to Dismiss.

Factual and Procedural Background

This matter pertains to allegations that Plaintiff provided medical services to Defendant for which Defendant failed to make payment. It is alleged that Defendant initially used a credit card to charge the \$451.91 for medical consultation. Defendant thereafter reported the charge to her credit card as a fraudulent charge and received a refund. After calling the credit card company, Defendant went to Plaintiff’s office and indicated that her health plan was sending payment for the services and requested a refund of the \$451.91. Plaintiff issued Defendant a check for \$476.91 (which included payment of Defendant’s copay of \$25), which Defendant thereafter cashed.

Based on the above, Plaintiff filed her complaint on April 29, 2025, alleging three causes of action: (1) fraud; (2) false light; and (3) defamation. Plaintiff’s prayer seeks \$30,000 in compensatory damages as

well as \$10,000 in punitive damages.

Defendant filed her answer on June 11, 2025. Defendant then filed the instant motion to dismiss on September 22, 2025.

Applicable Law

Defendant filed her styled as a “motion to dismiss pursuant to Fed. R. Civ. P. 12(b)(6).” This matter is pending in state court, however. The Federal Rules of Civil Procedure do not apply. A motion to dismiss under the federal rules is equivalent, however, to a demur or motion for judgment on the pleadings (“MJOP”) under California law. (Compare Fed. R. Civ. Proc. 12(b)(6) and Code Civ. Proc. §§ 430.10(e) and 438(c)(B)(ii).)

While a demurrer is to be filed within 30 days of service of the complaint, a motion for judgment on the pleadings may be filed at any time after the “time for the defendant to demur to the complaint has expired,” if the defendant has filed an answer. (Code Civ. Proc. § 438(f).) Here, Defendant filed an answer on June 11, 2025, and the time to file a demur has expired. As such, the Court deems the instant motion a motion for judgment on the pleadings and finds that it is timely.

As the Court finds that the instant motion is one for judgment on the pleadings, the California rules applicable to such a motion apply.

Failure to Meet and Confer

“Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc. § 439 (a).) The meet and confer must occur at least 5 days before the MJOP is filed. (*Id.* at 439(a)(2).)

The moving party is required to file a declaration along with their MJOP papers that confirms (1) the parties properly met and conferred but did not reach an agreement or (2) the other party failed to respond to the meet and confer request or failed to meet and confer in good faith. (*Id.* at 439(a)(3).)

Defendant did not file any declaration along with her Motion, much less one that meets the above requirements. As the Code makes clear, the meet and confer is mandatory. Defendant’s status as an unrepresented party does not give her leeway to avoid this requirement.

Conclusion

Defendant’s motion to dismiss – *i.e.* motion for judgment on the pleadings – is **CONTINUED** to allow the parties time to properly meet and confer. The Court Orders as follows:

- The Parties must meet and confer in person or by phone or video conference on or before **Friday, February 20, 2026**.
- Following the meet and confer, Plaintiff must file a declaration demonstrating that the Parties met and conferred and indicating that the Parties either: (1) reached an agreement on the merits of the MJOP and the Parties are stipulating to the filing of an amended complaint, or (2) did not reach an agreement and the Court should proceed with ruling on the MJOP – or any portion thereof to which the Parties could not agree. Alternatively, a notice of settlement will suffice.

- The above declaration must be filed on or before **Wednesday, February 25, 2026**.
- The hearing on the MJOP is continued to **Monday, March 9, 2026**, at 9:00 a.m. in Department 34.

The Parties are strongly encouraged to discuss resolving this matter during the above meet and confer. The Court has concerns that this matter should not be classified as an unlimited civil matter and/or should be resolved through other means. The Court will address those concerns after it hears from the Parties regarding their meet and confer.

10. 9:00 AM CASE NUMBER: C25-01235
CASE NAME: CHARLES CAUFFIELD VS. CATHERINE AMOURIS
HEARING ON DEMURRER TO: CROSS-COMPLAINT OF CATHERINE AMOURIS
FILED BY: CAUFFIELD, CHARLES
TENTATIVE RULING:

Plaintiff and Cross-Defendant Charles Cauffield's meet and confer declaration shows that the moving party has not yet complied with Code of Civil Procedure, section 430.41. The Court continues the demurrer hearing on its own motion to **Monday, March 2, 2026**.

Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355, fn. 3.

Plaintiff and Cross-Defendant Charles Cauffield shall file a Code of Civil Procedure section 430.41 meet and confer declaration by **Friday, February 13, 2026**, showing compliance with the requirement to meet and confer "in person, by telephone, or by video conference." Code Civ. Proc. § 430.41(a).

11. 9:00 AM CASE NUMBER: C25-01812
CASE NAME: THERESA HOFFMAN VS. BASS MEDICAL GROUP
HEARING IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: CAIO FORMENTI
FILED BY: HOFFMAN, THERESA
TENTATIVE RULING:

Pursuant to the Notice of Taking Hearing Off Calendar filed January 22, 2026, this matter is DROPPED from calendar and the hearing VACATED.